

1.

CASE #	CASE NAME	HEARING NAME
CVME2512487	SWAINE VS SMITH	MOTION TO STAY CIVIL ACTION (OR IN THE ALTERNATIVE, STAY DISCOVERY) PENDING RESOLUTION OF CRIMINAL PROCEEDINGS

Tentative Ruling: Deny without prejudice. Continue the TSC to March 23, 2027.

Defendants provide no valid justification to seek an indefinite stay on the pending civil litigation. Neither the Court's inherent powers to manage and control its court proceedings nor the cases cited by Defendants warrant a finding that they are entitled to a stay of proceeding in the civil action while the criminal action of one Defendant is pending. "[W]hen both civil and criminal proceedings arise out of the same or related transactions, an objecting party is generally entitled to a stay of discovery in the civil action until disposition of the criminal matter. [Citations.]" (*Pacers, Inc. v. Superior Court* (1984) 162 Cal.App.3d 686, 690.) When deciding whether a stay should be granted, the Court must consider the particular circumstances and competing interests involved in light of the 5-factor framework of *Keating v. Office of Thrift Supervision* (9th Cir. 1998) 45 F.3d 322.

As to Defendant Ashley Smith who is facing criminal prosecution there is no indication that her constitutional rights under the Fifth Amendment are yet implicated to justify an indefinite stay on either the entire action or a limited accommodation of staying only the discovery directed against her. There is no indication that Ashley has yet invoked her privilege against self-incrimination in response to a specific question asked in discovery for the Court to ascertain whether Plaintiffs are seeking information that might tend to incriminate Defendant Ashley Smith. The motion is denied without prejudice to allow Smith to refile once such rights are implicated.

As to Defendant Russell Smith, he is not a criminal defendant whose Fifth Amendments rights are implicated in the criminal case of Ashely Smith arising out of the same incident which is the subject of this civil litigation. Hence, the *Keating* framework has no application as to Russell Smith which has been crafted to balance the competing interests when a criminal defendant is forced to choose between testifying in a civil matter and asserting her Fifth Amendment privilege.

2.

CASE #	CASE NAME	HEARING NAME
CVME2512605	SHEPPARD VS SERAT	MOTION TO STRIKE 1 ST AMENDED COMPLAINT

Tentative Ruling: Grant in part to strike only the following portions of the First Amended Complaint ("FAC") concerning punitive damages as requested by Defendant as referenced in page 1, line 26 through page 3, line 2 in the notice of motion:

Pg. 3, Ln. 11: "recklessly and/or intentionally"

Pg. 4, Ln. 4-5: "The despicable nature of Defendants' behavior is reflected by the fact...."

Pg. 4, Ln. 10, 11-13: "The aforesaid acts and/or omissions of" and "willful and wanton in that said Defendants demonstrated a conscious and deliberate disregard of the rights, safety, and interests of others by willfully...."

Pg. 17, Ln. 28- Pg. 18, Ln.1-3: “Exemplary and punitive damages in an amount appropriate to punish Defendant MELODY ANN SERAT, and DOES 1 through 100, Inclusive, and to deter others from engaging in similar wrongful conduct in an amount to be shown according to proof....”

Deny as to remaining portions of the FAC referenced in the notice of motion.

Grant with 30 days leave to amend.

No facts have been alleged to indicate that Defendant acted with malice, oppression, or fraud. Because it is not alleged that Defendant acted with an intent to injure Plaintiffs, the ultimate facts demonstrating a despicable conduct, which requires more than a willful and conscious disregard, need to be alleged. Here, Defendant is alleged to have been driving while intoxicated under the influence of alcohol or drugs. As noted by the Supreme Court in *Taylor v. Superior Court*, *supra*, 24 Cal.3d at 900, driving a vehicle while intoxicated is not itself a basis for a finding of conscious disregard of safety. Rather, the pleading must be supported by allegations constituting malice within the meaning of section 3294. Here, the FAC alleges that the despicable conduct constituting malice is that Defendant, aftermath of the accident, attempted to conceal evidence and to deny being involved in the accident. (FAC, ¶ 10.) However, no matter how despicable the conduct may be, it is irrelevant to Plaintiffs’ claim for negligence as events which occurred after the accident is not what is alleged to have caused Plaintiffs’ injuries. Plaintiffs also allege a long list of the Vehicle Code provisions which have been violated by Defendant. However, mere conclusory allegations that Defendant violated the law does not supply the facts supporting the claim for punitive damage. Therefore, the improper allegations related to Plaintiffs’ claim for punitive damages are subject to be stricken.

3.

CASE #	CASE NAME	HEARING NAME
CVSW2108099	SANTOS V. VELOCITY	OSC RE: CONSOLIDATION

Tentative Ruling: Consolidate the case ending in 8159 into this matter, ending in 0899 (With a *jury* trial set on February 5, 2027—no opposition was filed. Case CVSW2108099 is deemed the leading case.

4.

CASE #	CASE NAME	HEARING NAME
CVME2608159	PELAYO VS STIRLING	MOTION FOR LEAVE TO FILE SECOND AMENDED CROSS-COMPLAINT

Tentative Ruling: Deny—no Proof of Service.

5.

CASE #	CASE NAME	HEARING NAME
CVME2510845	ALLEN V. TARPLEY	CMC AND OSC

Tentative Ruling: Continue the CMC and OSC to April 1, 2027. Sanction Plaintiff \$500.00, on the OSC for failing to file the POS and/or file a LR 3116 declaration.